

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

ROBERT ROGERS,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. VICTOR
ROBALINO [SHIELD # 31599], P.O. ABDUL
RAHMAN [SHIELD # 30034], DETECTIVE
DESANTIS [SHIELD # 172], P.O. ANGELO
PIZARRO [SHIELD # 29275], and JOHN DOE AND
JANE DOE #1-10 (the names John and Jane Doe
being fictitious, as the true names are presently
unknown),

Defendants.

**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL AS TO
ATTORNEYS' FEES**

12 CV 1121 (MKB) (RER)

WHEREAS, Plaintiff commenced this action by filing a complaint on or about
March 7, 2012, alleging that the defendants violated plaintiff's federal civil and state common
law rights; and

WHEREAS, Defendants have denied any and all liability arising out of plaintiff's
allegations; and

WHEREAS, Defendant City of New York served plaintiff with an Offer of
Judgment pursuant to Fed. R. Civ. P. 68 on October 16, 2012; and

WHEREAS, Plaintiff accepted defendant City of New York's Rule 68 Offer of
Judgment on October 27, 2012; and

WHEREAS, Plaintiff has assigned all right to attorney's fees, costs, and expenses
in this matter to his attorney, Ugochukwu Uzoh, Esq.; and

WHEREAS, the parties have now negotiated and agreed to resolve the issue of reasonable attorneys' fees, costs and expenses without further proceedings;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay counsel for plaintiff, Ugochukwu Uzoh, Esq., the total sum of **FIVE THOUSAND FIVE HUNDRED DOLLARS (\$5,500.00)**, in full satisfaction of all claims for costs, expenses and attorneys' fees arising out of any claims that were or could have been alleged by plaintiff in this action. In consideration for the payment of this sum, plaintiff and plaintiff's counsel agree to release the defendants City of New York, Detective Desantis, Detective Robalino and Police Officer Pizzarro, as well as the individual identified in the caption of the complaint as Police Officer Abdul-Rahman, and any present or former employees and agents of the City of New York, from any and all liability, claims, or rights of action for costs, expenses and attorneys' fees arising out of or connected with this action.

3. Plaintiff and counsel for plaintiff hereby agree and represent that no other claims for attorneys' fees, costs, or expenses arising out of this action shall be made by or on behalf of plaintiff in any application for attorneys' fees, costs, or expenses at any time.

4. Nothing contained herein shall be deemed to be an admission by any of the defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of

the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York.

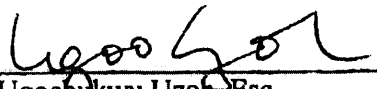
6. Plaintiff and plaintiff's counsel shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including a general release from plaintiff and plaintiff's counsel, based on the terms of paragraph "2" above.

7. The payment of the amount specified in paragraph "2" to counsel for plaintiff shall constitute the "reasonable attorneys' fees, expenses and costs" paid pursuant to the accepted Rule 68 Offer of Judgment.

8. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto with respect to the question of attorneys' fees, costs, and expenses arising out of or connected with this action, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the attorney's fees, expenses, and costs shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Ugochukwu Uzoh, Esq.
Attorney for Plaintiff
304 Livingston Street, Suite 2R
Brooklyn, New York 11217
(718) 874-6045

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
Attorney for Defendants
New York, NY 10007
212-788-0988

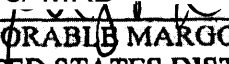
By: 
Ugochukwu Uzoh, Esq.
Attorney for Plaintiff

Dated: New York, New York
12/19, 2012

By: 
Brian Francolla
Senior Counsel

Dated: New York, New York
12/20, 2012

SO ORDERED:

s/ MKB

HONORABLE MARGO K. BRODIE
UNITED STATES DISTRICT JUDGE

Dated: Brooklyn, New York
December 20, 2012
